

House Amendment to
Senate File 233

S-3038

1 Amend Senate File 233, as passed by the Senate, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 144E.2, Code 2025, is amended to read
5 as follows:

6 **144E.2 Definitions.**

7 As used in [this chapter](#):

8 1. "Eligible facility" means an institution operating under
9 a federalwide assurance for the protection of human subjects
10 pursuant to 42 U.S.C. §289(a) and 45 C.F.R. pt. 46, and
11 subject to the federalwide assurance laws, rules, policies, and
12 guidelines including renewals and updates.

13 ~~1.~~ 2. "Eligible patient" means an individual who meets all
14 of the following conditions specified under paragraph "a" or
15 "b":

16 a. (1) Has a terminal illness, attested to by the patient's
17 treating physician.

18 ~~b.~~ (2) Has considered and rejected or has tried and failed
19 to respond to all other treatment options approved by the
20 United States food and drug administration.

21 ~~c.~~ (3) Has received a recommendation from the individual's
22 physician for an investigational drug, biological product, or
23 device.

24 ~~d.~~ (4) Has given written informed consent for the use of
25 the investigational drug, biological product, or device.

26 ~~e.~~ (5) Has documentation from the individual's physician
27 that the individual meets the requirements of this subsection
28 paragraph "a".

29 b. (1) Has a life-threatening or severely debilitating
30 illness, attested to by the patient's treating physician.

31 (2) Has exhausted all other United States food and drug
32 administration-approved treatment options by contraindication,
33 potential or previous treatment failure, or actual or potential
34 adverse reaction.

35 (3) Has received a recommendation from the individual's

1 physician for an individualized investigational treatment,
2 based on an analysis of the patient's genomic sequence, human
3 chromosomes, deoxyribonucleic acid, ribonucleic acid, genes,
4 gene products such as enzymes and other types of proteins, or
5 metabolites.

6 (4) Has given written informed consent for the use of the
7 individualized investigational treatment.

8 (5) Has documentation from the individual's physician that
9 the individual meets the requirements of this paragraph "b".

10 3. "Individualized investigational treatment" means a drug,
11 biological product, or device that is unique to, and produced
12 exclusively for use by, an individual patient, based on the
13 individual patient's own genetic profile, and is provided in a
14 manner that is consistent with a federalwide assurance for the
15 protection of human subjects. "Individualized investigational
16 treatment" includes but is not limited to individualized
17 gene therapy, antisense oligonucleotides, and individualized
18 neoantigen vaccines.

19 2. 4. "Investigational drug, biological product, or
20 device" means a drug, biological product, or device that has
21 successfully completed phase 1 of a United States food and drug
22 administration-approved clinical trial but has not yet been
23 approved for general use by the United States food and drug
24 administration and remains under investigation in a United
25 States food and drug administration-approved clinical trial.

26 3. 5. "Terminal illness" means a progressive disease
27 or medical or surgical condition that entails significant
28 functional impairment, that is not considered by a treating
29 physician to be reversible even with administration of
30 treatments approved by the United States food and drug
31 administration, and that, without life-sustaining procedures,
32 will result in death.

33 4. 6. "Written informed consent" means a written document
34 that is signed by the patient, a parent of a minor patient, or a
35 legal guardian or other legal representative of the patient and

1 attested to by the patient's treating physician and a witness
2 and that includes, at a minimum, all of the following:

3 ~~a.~~ If the patient is an eligible patient as specified in
4 subsection 2, paragraph "a":

5 ~~(1)~~ (1) An explanation of the products and treatments approved
6 by the United States food and drug administration for the
7 disease or condition from which the patient suffers.

8 ~~b.~~ (2) An attestation that the patient concurs with the
9 patient's treating physician in believing that all products
10 and treatments approved by the United States food and drug
11 administration are unlikely to prolong the patient's life.

12 ~~c.~~ (3) Clear identification of the specific proposed
13 investigational drug, biological product, or device that the
14 patient is seeking to use.

15 ~~d.~~ (4) A description of the best and worst potential
16 outcomes of using the investigational drug, biological product,
17 or device and a realistic description of the most likely
18 outcome. The description shall include the possibility that
19 new, unanticipated, different, or worse symptoms might result
20 and that death could be hastened by use of the proposed
21 investigational drug, biological product, or device. The
22 description shall be based on the treating physician's
23 knowledge of the proposed investigational drug, biological
24 product, or device in conjunction with an awareness of the
25 patient's condition.

26 ~~e.~~ (5) A statement that the patient's health plan or
27 third-party administrator and provider are not obligated to
28 pay for any care or treatments consequent to the use of the
29 investigational drug, biological product, or device, unless
30 they are specifically required to do so by law or contract.

31 ~~f.~~ (6) A statement that the patient's eligibility for
32 hospice care may be withdrawn if the patient begins curative
33 treatment with the investigational drug, biological product,
34 or device and that hospice care may be reinstated if this
35 treatment ends and the patient meets hospice eligibility

1 requirements.

2 ~~g.~~ (7) A statement that the patient understands that the
3 patient is liable for all expenses consequent to the use of
4 the investigational drug, biological product, or device and
5 that this liability extends to the patient's estate unless
6 a contract between the patient and the manufacturer of the
7 investigational drug, biological product, or device states
8 otherwise.

9 b. If the patient is an eligible patient as specified in
10 subsection 2, paragraph "b":

11 (1) An explanation of the currently approved products and
12 treatments for the disease or condition from which the patient
13 suffers.

14 (2) An attestation that the patient concurs with the
15 patient's treating physician in believing that all currently
16 approved and conventionally recognized products and treatments
17 are unlikely to prolong the patient's life.

18 (3) Clear identification of the specific proposed
19 individualized investigational treatment that the patient is
20 seeking to use.

21 (4) A description of the best and worst potential outcomes
22 of using the individualized investigational treatment
23 and a realistic description of the most likely outcome.
24 The description shall include the possibility that new,
25 unanticipated, different, or worse symptoms might result
26 and that death could be hastened by use of the proposed
27 individualized investigational treatment. The description
28 shall be based on the treating physician's knowledge of
29 the proposed individualized investigational treatment in
30 conjunction with an awareness of the patient's condition.

31 (5) A statement that the patient's health plan or
32 third-party administrator and provider are not obligated to
33 pay for any care or treatments consequent to the use of the
34 individualized investigational treatment, unless they are
35 specifically required to do so by law or contract.

1 (6) A statement that the patient's eligibility for hospice
2 care may be withdrawn if the patient begins curative treatment
3 with the individualized investigational treatment and that
4 hospice care may be reinstated if this treatment ends and the
5 patient meets hospice eligibility requirements.

6 (7) A statement that the patient understands that the
7 patient is liable for all expenses consequent to the use of
8 the individualized investigational treatment and that this
9 liability extends to the patient's estate, unless a contract
10 between the patient and the manufacturer of the individualized
11 investigational treatment states otherwise.

12 Sec. 2. Section 144E.3, Code 2025, is amended to read as
13 follows:

14 **144E.3 Manufacturer and eligible facility rights.**

15 1. A manufacturer of an investigational drug, biological
16 product, or device or a manufacturer operating within, and in
17 compliance with all requirements applicable to, an eligible
18 facility may make available, and an eligible patient, as
19 applicable under section 144E.1, subsection 2, paragraph "a"
20 or "b", may request from a manufacturer of an investigational
21 drug, biological product, or device, or a manufacturer
22 operating within, and in compliance with all requirements
23 applicable to, an eligible facility, the manufacturer's
24 investigational drug, biological product, or device, or the
25 manufacturer's individualized investigational treatment under
26 this chapter. This chapter does not require a manufacturer
27 of an investigational drug, biological product, or device, or
28 of an individualized investigational treatment to provide or
29 otherwise make available the investigational drug, biological
30 product, or device, or the individualized investigational
31 treatment to an eligible patient.

32 2. A An eligible facility, or a manufacturer described
33 in subsection 1, that is in compliance with all applicable
34 requirements, may do any of the following:

35 a. Provide an investigational drug, biological product,

1 or device, or an individualized investigational treatment
2 to an eligible patient, as applicable under section 144E.1,
3 subsection 2, paragraph "a" or "b", without receiving
4 compensation.

5 **b.** Require an eligible patient, as applicable under section
6 144E.1, subsection 2, paragraph "a" or "b", to pay the costs
7 of, or the costs associated with, the manufacture of the
8 investigational drug, biological product, or device, or the
9 individualized investigational treatment.

10 Sec. 3. Section 144E.4, Code 2025, is amended to read as
11 follows:

12 **144E.4 Treatment coverage.**

13 1. **This chapter** does not expand the coverage required of an
14 insurer under **Title XIII, subtitle 1.**

15 2. A health plan, third-party administrator, or
16 governmental agency may, but is not required to, provide
17 coverage for the cost of an investigational drug, biological
18 product, or device, ~~or~~ the cost of an individualized
19 investigational treatment, the cost of services related to the
20 use of an investigational drug, biological product, or device,
21 or the cost of services related to the use of an individualized
22 investigational treatment under this chapter.

23 3. **This chapter** does not require any governmental agency
24 to pay costs associated with the use, care, or treatment of a
25 patient with an investigational drug, biological product, or
26 device, or an individualized investigational treatment.

27 4. **This chapter** does not require a hospital licensed under
28 chapter 135B or other health care facility to provide new or
29 additional services, unless approved by the hospital or other
30 health care facility.

31 Sec. 4. Section 144E.5, Code 2025, is amended to read as
32 follows:

33 **144E.5 Heirs not liable for treatment debts.**

34 If a patient dies while being treated ~~by~~ with an
35 investigational drug, biological product, or device, or

1 an individualized investigational treatment, the patient's
2 heirs are not liable for any outstanding debt related to the
3 treatment or lack of insurance due to the treatment, ~~unless~~
4 ~~otherwise required by law.~~

5 Sec. 5. Section 144E.6, Code 2025, is amended to read as
6 follows:

7 **144E.6 Provider recourse.**

8 1. To the extent consistent with state law, the board of
9 medicine created under [chapter 147](#) shall not revoke, fail
10 to renew, suspend, or take any action against a physician's
11 license based solely on the physician's recommendations to
12 an eligible patient regarding access to or treatment with an
13 investigational drug, biological product, or device, or an
14 individualized investigational treatment.

15 2. To the extent consistent with federal law, an entity
16 responsible for Medicare certification shall not take action
17 against a physician's Medicare certification based solely on
18 the physician's recommendation that a patient have access to
19 an investigational drug, biological product, or device, or an
20 individualized investigational treatment.

21 Sec. 6. Section 144E.7, Code 2025, is amended to read as
22 follows:

23 **144E.7 State interference.**

24 An official, employee, or agent of this state shall not
25 block or attempt to block an eligible patient's access to an
26 investigational drug, biological product, or device, or to an
27 individualized investigational treatment. Counseling, advice,
28 or a recommendation consistent with medical standards of care
29 from a licensed physician is not a violation of [this section](#).

30 Sec. 7. Section 144E.8, Code 2025, is amended to read as
31 follows:

32 **144E.8 Private cause of action.**

33 1. [This chapter](#) shall not create a private cause of action
34 against a manufacturer of an investigational drug, biological
35 product, or device, or an individualized investigational

1 treatment, against an eligible facility, or against any other
2 person or entity involved in the care of an eligible patient
3 using the investigational drug, biological product, or device,
4 or the individualized investigational treatment for any harm
5 done to the eligible patient resulting from the investigational
6 drug, biological product, or device, or the individualized
7 investigational treatment, if the manufacturer, eligible
8 facility, or other person or entity is complying in good faith
9 with the terms of [this chapter](#) and has exercised reasonable
10 care.

11 2. [This chapter](#) shall not affect any mandatory health care
12 coverage for participation in clinical trials under Title XIII,
13 subtitle 1.>